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Reframing the Feudal Revolution

Political and Social Transformation Between Marne and Moselle, c.800–c.
.1100

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Chapter

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INSTITUTIONAL INTEGRATION

What his brother [Charles the Bald] had done badly in the kingdom, he [King Louis] would correct, and what his brother had let slip through negligence, he would make sure carefully to improve.

Archbishop Hincmar of Rheims, *On keeping faith with Charles*.¹

For many historians, one of the most striking features of the Carolingian ninth century is the imposition of a rigorous and relatively centralised system of government upon the highly regionalised kingdom which Pippin and his heirs took over after the formal elimination of the Merovingian dynasty in the mid eighth century. Notwithstanding the cultural vitality of late Merovingian Francia, it can scarcely be doubted that 'the comprehensive and ambitious scheme of Carolingian administration' meant Frankish kingship impinged more on the provinces than hitherto: and if this was true anywhere, it was true for the area with which we are concerned, at the heart of the Carolingian empire ruled by Charlemagne and his successors.² The key figures in this reinvigorated administration were local office-holders, namely the count and the bishop, together with their various agents. In addition, the Carolingian king exerted influence through unmediated control of local resources, and through personal presence, whether indirectly, through palaces, or directly, by visiting the area. These aspects of ninth-century society can be considered the formal institutions of Carolingian rule.

Scepticism about the actual penetration of society by these formal institutions is a key part of the recent critique of the Feudal Revolution

¹ '[U]t quae frater eius in eo perperam egit ipse corrigat, et quod per negligentiam frater eius admisit, ipse per diligentiam emendare procurat': Hincmar of Rheims, *De fide Carolo servanda*, PL, vol. cxxv, col. 963.

² R. McKitterick, *The Frankish kingdoms under the Carolingians, 751–987* (London, 1983), p. 77. For the vitality, see Y. Hen, *Roman barbarians: the royal court and culture in the early medieval west* (Basingstoke, 2007). For centrality, see E. Ewig, 'Descriptio Franciae', in W. Braunfels, ed., *Karl der Grosse*, 5 vols. (Düsseldorf, 1967), vol. v, pp. 143–72.

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model, which suggests a certain superficiality: these institutions look very impressive on paper, but left local society largely untouched in practice. The purpose of this chapter is to demonstrate that the evidence from the lands between Marne and Moselle for a thorough integration of the locality with the centre by means of these newly invigorated formal institutions is in fact substantial and cannot be ignored, and by implication that any analysis of the ninth century which does not do it justice is by that token necessarily incomplete. The aim is to prove that earlier approaches to the Carolingian period cannot be dismissed out of hand, though certain ideas sometimes to be found within these approaches, such as a priori division between church and state, cannot be justified and so will receive little discussion.³ A relatively detailed assessment is therefore an integral part of the argument that is being proposed, even though in Chapter 3 we shall have cause to refine the standard interpretation of the evidence here set out.

COUNTS AND THE LOCALITY

In place of the regional duchies and dukes attested by Merovingian and early Carolingian sources in Champagne and around the Moselle, Carolingian rulers appear to have developed a finer-grained organisation, using officials named counts (*comites*) as their local representatives.⁴ According to the edicts known as capitularies, it was the count who was tasked with channelling royal commands into the localities and with guaranteeing peace, tracking down thieves, implementing other decrees and reporting back to the emperor on progress achieved. They were endowed with resources, the *res de comitatu*, to give them the wherewithal to perform the arduous duties to which they were so vigorously exhorted.⁵ The intention was to confine violence as far as possible to those holding office, as part of course of a general attempt to encompass social interaction within *ministeria*.⁶

At first sight, the evidence from the lands between Marne and Moselle showing that this system was no mere Aachen flight of fancy appears disappointingly slight. While historians have traditionally made use of geographical terminologies found in charters to estimate the number of counts and even reconstruct micro-political history, this is methodologically

³ Cf. de Jong, 'Ecclesia and the early medieval polity'.

⁴ For the Merovingian background, see I. Wood, *The Merovingian kingdoms 450–751* (London, 1994) and more specifically, Cardot, *L'espace*. Memories of the Moselle duchy are preserved in *DDCM* nos. 148 and 149.

⁵ *DDCF* nos. 94 (Toul) and 152 (Langres).

⁶ For example, Synodal letter of the Council of Paris 829, *MGH Capit.*, vol. II, ch. 29., p. 38.

unsound, as will be discussed in Chapter 5. In fact we do not know how many counts there were in this area (though an estimate of around a score at any one time would be probably of the right order of magnitude); nor do we know where they were based; nor do we know much about individual counts or their families. For example, we know the names of nine counts established by King Charles the Bald in 877 as a rotating retinue to attend his mistrusted son Louis when around the River Meuse, and we can be sure that these were powerful men in the region. Even so, only a couple can be positively identified.⁷ For counts of rural areas, seldom documented other than as witnesses to occasional local charters or by passing reference in royal diplomas or capitularies, we can do little except gratefully accept the hints proffered by onomastics.⁸ It should further be noted that we know very little about comital deputies, either. Enough evidence exists for viscounts and other figures like *centenarii* in some way subordinated to the count to suggest they existed, but compared to the count, they seem insignificant.⁹

It might seem, then, that we are reduced to making best use of anecdotal material to see whether counts truly exercised an efficacious authority on behalf of kings in the area. This kind of material is at least relatively plentiful. For example, Charlemagne's famous response to a count's series of eminently practical questions relating to collection of tolls, validity of charters of manumission, and problems in discipline, for all that it was probably produced at the centre, survives only in two manuscripts with connections both to Lotharingia and Rheims, suggesting that the puzzled count, and the problems he sought to overcome, came from the area.¹⁰ Letters, formulae, and hagiography also preserve anecdotal documentation of comital responsibility for poachers, and the count's performance of his role.¹¹ The best anecdotal evidence, however, comes

⁷ *MGH Capit.*, vol. II, no. 281, ch. 15.

⁸ Cf. K. Schmid's discussion of the obscure, but apparently important, late-ninth-century Count Guntram, in 'Unerforschte Quellen aus quellenarmer Zeit: zur *amicitia* zwischen Heinrich I und dem westfränkisch König Robert im Jahre 923', *Francia* 12 (1984), 119–47.

⁹ Ninth-century *vicecomites* are attested around Laon (*PL*, vol. CXXV, col. 1037 – Hincmar of Rheims's *Expositiones*); around Châlons (*HRE*, bk III, ch. 23, pp. 313–14, c.860s); and around Soissons (AD de l'Aisne, MS 455, f. 70r – the cartulary of St-Crepin, Soissons). *Traditiones Wizenburgenses: d. Urkunden d. Klosters Weissenburg: 661–864*, ed. K. Glöckner and A. Doll (Darmstadt, 1979), no. 201 (807) records *centenarii* from the Saargau.

¹⁰ *MGH Capit.*, vol. I, no. 58, p. 145. The recipient was almost certainly a count, since one question was whether it was the count or the *cancellarius* who took the money from making a charter. The manuscripts in question are Paris BnF. lat. 9654 and Vatican Pal. lat. 582.

¹¹ Einhard, *Epistolae*, ed. K. Hampe, *MGH Epp.*, vol. V (Hanover, 1898–9), nos. 47 and 48; *Vita Nivardi*, ed. W. Levison, *MGH SRM*, vol. V (Hanover, 1896), pp. 239–341 for violence of the count. Compare 'Fragments du recueil perdu de formules franques dites "Formulae Pithoei"', ed. R. Poupardin, *BEC* 69 (1908), pp. 643–62 – a text linked to Laon – where at p. 656 someone is judged at a count's *mallum* for the theft of a horse (cf. below, p. 146); and *MGH Formulae*, p. 191 and p. 256 for murder, and p. 194 over status.

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from Flodoard's *History of the Church of Rheims*, written in the mid tenth century but registering much earlier material. The letters that Flodoard records as having been sent by Archbishop Hincmar of Rheims to various counts on a whole range of issues in his capacity as royal envoy (*missus*) show that the mid-ninth-century counts around Rheims received letters from *missi* on a regular basis. For example, Hincmar noted that a certain Count Bertram in the Tardenois had made people in his county swear an oath to the king and summoned people to his court *per bannum*, 'by command', just as capitularies indicate he was supposed to.¹²

The evidence for public exactions

Ultimately, though, one cannot prove a systematic kind of control simply by reference to anecdotal evidence, however suggestive, for it can always be dismissed as exceptional or unrepresentative in some way. We need therefore to see whether more general points can be made if we approach our evidence more subtly. One possibility is to make use of the plentiful evidence from this area for exemptions and exceptions: anecdotal in a sense, but indicative nevertheless of broader realities. Exemptions from public duties were not always explicitly linked to counts, but they provide evidence for the framework in which counts were expected to be active, and therefore they help shift the burden of proof.

One particularly plentiful kind of source are charters of royal immunity given to churches, texts exempting the church from the activities of royal agents, and many of which explicitly indicate that free men resident on the church's lands remained liable to public exactions.¹³ Immunities bestowed by Charlemagne upon the cathedrals of Metz and Trier are clear about the public services which were not exempted, specifically referring to army service, guard and bridge duty.¹⁴ Whether these strictures were observed cannot be known from these texts, but this was not merely empty rhetoric. After all, immunities were even given to Rheims for certain named estates, showing that the texts were not simply generic, and one capitulary text directly discussed the practical implications of an immunity charter (*praeceptum immunitatis*) for the count's jurisdiction over landless free men resident on a church's estate.¹⁵ A number of immunity-related

¹² *HRE*, bk III, ch. 26, p. 342. The underlying issue was that Haimo, Hincmar's *fidelis*, had set out on the king's *servitium* and could not attend Bertram's *placitum*.

¹³ E.g., *DDCM* nos. 71 (St-Germain des Prés), 193 (Paris); *DLP* nos. 624 (Murbach) and 534 (Hornbach).

¹⁴ *DDCM* nos. 66 and 91.

¹⁵ For the Rheims immunities, see *HRE*, bk II, ch. 11, p. 158, and ch. 17, p. 170 for Juvigny, Crugny and Courville. There are some question marks over these texts, but they are certainly ninth

texts bring us still closer to practice, like the writs Emperor Lothar I sent to the counts around Prüm, reminding them of that monastery's immunity.¹⁶ Evidence that the monasteries of St-Rémi and St-Maur-des-Fossés took dues linked to royal obligations from their tenants may give an indication of the concrete content of an immunity.¹⁷ From a different angle, so does another text issued by Lothar for Prüm, stating that anyone who killed a dependant (*servus*) linked to the monastery was to pay the fine (*freda*) not to royal agents (*publici actores*), but to Prüm.¹⁸ Exemptions from a system can, after all, point to that system's strength, not its weakness.

There is also evidence for public exactions not directly associated with the immunity. Three examples, relating to different forms of public obligation, are particularly instructive. A village community at Awans in the Ardennes, held responsible for the murder of a priest, had to pay his *leudis* or *wergild* to Prüm, to which the king had given the land, rather than to the royal agent, who would probably have been the count.¹⁹ Another charter attests how in the time of Bishop Drogo of Metz (d.855), a certain Winebert had transferred his property to the monastery of St-Arnulf as part of an arrangement to free himself and his children of evidently effective public exactions. The charter, issued by King Lothar II in 856, barely survived, its verso side ominously marked 'useless charter' in a twelfth-century hand, so perhaps this arrangement was more common than it now seems.²⁰ Not everyone, though, sought to evade their duties. A little earlier, a certain Folcuin, probably a local free landowner around Remiremont in the Vosges, had gone with Frankish armies to fight the Slavs. His case is known only because he entrusted his lands to an unfortunately short-lived royal free man, whose estates automatically fell to the king on his death, as a dismayed Folcuin discovered on his return.²¹

There are signs, too, that formal legal status, though far from defining social status, certainly informed it, with implications for the formal distribution of authority. Much of the recent work on freedom has

century, at the latest. For the capitulary, H. Mordek, *Bibliotheca capitularium regum Francorum manuscripta: Überlieferung und Traditionszusammenhang der fränkischen Herrschererlasse* (Munich, 1995), Appendix II, no. 19, ch. 18.

¹⁶ *DLothI* no. 57 (c.841), relating to the *potestas* of Prüm. Cf. *HRE*, bk II, ch. 19, p. 175.

¹⁷ Specifically, the *bos aquensis* (Aachen ox) and the *heribanum*, mentioned in the polyptych of St-Rémi and the polyptych of St-Maur: *Le polyptyque et les listes de cens de l'abbaye de Saint-Rémi de Reims (9^e-11^e siècle)*, ed. J.-P. Devroey (Rheims, 1984), ch. 16 (p. 15); and *Das Polyptychon und die Notitia de Areis von Saint-Maur-des-Fossés*, ed. D. Hägermann and A. Hedwig (Sigmaringen, 1990), ch. 6 (p. 92). Cf. the *hostilicium*, mentioned throughout the polyptych of Prüm (*Das Prümer Urbar*, ed. I. Schwab (Düsseldorf, 1983) e.g. p. 166), and the polyptych of Montier-en-Der (*Das Polyptychon von Montierender*, ed. C.-D. Droste (Trier, 1988), e.g. ch. 27).

¹⁸ *DLothI*, no. 137. ¹⁹ *DLothI*, no. 132.

²⁰ *DLothII*, no. 6. The note *carta inutilis* was crossed out, which explains the charter's survival.

²¹ *DLP*, no. 739 (the charter survives only as a formulary).

rightly stressed negotiability, but sometimes the distinction between legally free and legally unfree was both sharp and significant, with certain duties and privileges resting on a stratum of free men, often labelled ethnically as Frankish. Carolingian texts from this area routinely distinguished between *Franci homines* and *coloni* along these lines, and a concrete example of what these distinctions meant is provided by a dispute from around Laon in the 870s. A certain Nivin claimed the right to defend himself with his weapons, a typical privilege of freedom, because 'he was a Frank'. In contrast, some of Nivin's followers were legally unfree, and so in theory, at least, could be subjected to the ordeal.²² No wonder, then, that counts and their delegates presided over enquiries to establish individuals' formal legal status, as recorded in hagiographical texts and indeed through a good dozen references in various northern Frankish formularies, collections of sample documents preserved in Carolingian-period manuscripts.²³

The mallum court

A second kind of approach to discerning the reality of comital power in this area concentrates on the conceptual significance of the Carolingian count's court, the so-called *mallum* or *mallum publicum*. Recent discussions about the *mallum* have been shaped by what has been thought to be Duby's implication that it was somehow more fair, legitimate, or binding than courts in later periods, because it meted out judgement rather than relying on arbitration. Historians working on conflict studies have discussed this idea, and their conclusions have been in general critical.²⁴ However, in the midst of this debate, a potentially rather important shift in what *mallum* actually meant has been neglected.

In the earliest uses of the word, in the pre-Carolingian Frankish law codes and particularly the *Lex Salica*, the meaning of the *mallum* is ambiguous but seems to label any judicial meeting, in particular those

²² Hincmar of Rheims, *Epistolae Ad Ludovicum Germaniae*, MGH *Concilia*, vol. iv, ch. 14, pp. 422–3, for the *Franci/coloni* distinction. For Nivin, see Hincmar of Rheims, *Opusculum in LV Capitulis*, ed. R. Schieffer, *Die Streitschriften Hinkmars von Reims und Hinkmars von Laon 869–871*, MGH *Concilia* (Hanover, 2003), pp. 308–10.

²³ *Miracula Dionysii* (BHL 2201–), ed. J. Mabillon, *Acta sanctorum ordinis sancti Benedicti*, vol. III:ii (Paris, 1672), pp. 358–423, bk 1, ch. 23. Formula references can be found in MGH *Formulae*, in the texts labelled as *Cartae Senonenses*, *Formulae Bignoniae*, *Formulae Senonenses recentiores*, *Lindobrogianae* and *Merkelianae* (excluding evidence from Reichenau and St-Gall). The second largest category of comital enquiry concerned murder (four). For a recent discussion of these manuscripts, see A. Rio, *Legal practice and the written word in the early Middle Ages: Frankish formulae, c. 500–1000* (Cambridge, 2009).

²⁴ S. White, 'Tenth-century courts'.

at village-level.²⁵ It was in other words a popular court, that institution which historians such as Wickham have been prepared to countenance as a genuine post- or non-Roman novelty in public life. In the later eighth and ninth century, however, the *mallum* came to describe a very different kind of court. In Carolingian-period texts, it was associated very strongly, indeed almost exclusively, with specifically comital or at least officially directed meetings, and clearly distinguished from lesser courts (*minora placita*). Of the twenty references to *mallum* courts in the Carolingian-period manuscripts of northern Frankish formularies, seventeen are linked to counts, the remainder to *missi* or *vicarii*. The association of comital activity with the *mallum*, and Carolingian promotion of the court, is particularly strong in late Carolingian capitularies, such as Charles the Bald's 873 Quierzy capitulary.²⁶ In texts like these, the *mallum* was identified as the only legitimate venue for certain kinds of court action. The Quierzy capitulary continued to remind its audience that the *mallum* should not be held in a church, 'because it is not right that men should be sentenced to death, dismembered and whipped, there where according to the capitularies they should have peace if they fled'.²⁷

It appears, in short, that the *mallum* underwent a redefinition, moving from indicating a kind of 'bottom-up' traditional meeting of free Franks to a more specific, almost technical label for a meeting held under the aegis of the count or his representative: an attempt to integrate all political activity into a framework ostensibly legitimised by Frankish tradition, but practically speaking a creation of the Carolingian court. There was no room in this understanding of the *mallum* court for the kind of autonomous community justice that the word seems initially to have indicated. It is significant that the *mallum* in this Carolingian sense is also important in locally produced or locally specific texts too, not just anonymous and collective texts emanating from the court. For example, a diploma of Lothar I for Murbach, a monastery in the Vosges, exempted certain named men from their duty to attend it, and a charter from Wissembourg records the holding of such a court.²⁸ Moreover, a

²⁵ Cf. C. Wickham, 'Public court practice: the eighth and twelfth centuries', in S. Esders, ed., *Rechtsverständnis und Konfliktbewältigung: gerichtliche und aussergerichtliche Strategien im Mittelalter* (Cologne, 2007), pp. 17–30.

²⁶ *MGH Capit.*, vol. II, no. 278: ch. 3 (pp. 343–4) alone refers to the *mallum* court twelve times.

²⁷ *Ibid.*, p. 346.

²⁸ *DLothI*, no. 45, transferring 'illud quod ad partem publicam facere', which included 'mallum custodire', and other duties owed to the count or his *iuniores*. Cf. *Traditiones*, ed. Doll, no. 160 (816), recording a *mallum* held at Brumath. There are plenty of others from Burgundian archives.

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ninth-century vernacular text originating from east of the Meuse also associates counts with the *mallum* court. Probably composed at the monastery of Prüm, the Song of St George imagines the saint as a ninth-century count, riding along to his *mallum* court:

Gorio fhuor ce malo / mit mikilemo herio . . .
George rode to the mallum / with a great following. . .
Dher mare crabo Gorio
*noble count George!*²⁹

The fullest description of a specific Carolingian *mallum* court comes, however, from Hincmar of Rheims's account of a vision of the other world of a Rheims layman named Bernold, written around 880.³⁰ Amongst screaming bishops and wailing kings, groaning in regret for not having listened to Hincmar when alive, Bernold spotted a certain unshaven, filthy count called Othar. Vainly trying to hide from Bernold's gaze, Count Othar admitted that he had been motivated in his lifetime by an unnamed demon (perhaps pride, since the same demon had advised him to hide from Bernold). Now, Othar asked Bernold to return to tell his wife, retinue (*homines*) and friends to give alms and sponsor prayers for his benefit. Without ceasing to dream, Bernard complied, finding himself in an oneiric *mallum publicum* at Voncq (in Champagne). He passed on Othar's message to Othar's men, 'and the other people who were there' before returning to Othar, whom he found clean-shaven, washed and dressed in white. This was a *mallum* which was attended by the free men of the region, or at least not only by Count Othar's men, but which was nevertheless clearly associated with comital authority, and in this instance, with a count's misdeeds.³¹ Needless to say, Hincmar's text does not document reality. We cannot claim that there was a real *mallum publicum* held at Voncq, and this Count Othar may never have existed (though in fact he probably did).³² But in a way this account is more informative than an isolated empirical detail could be, giving an insight into the connection between formal authority and local society at the conceptual level.

²⁹ Edited in W. Haubrichs, *Georgslied und Georgslegende im frühen Mittelalter: Text und Rekonstruktion* (Königstein, 1979), pp. 370–4, with modern German translation: my translation is based on his, as is the identification of provenance.

³⁰ *HRE*, bk III, ch. 18, p. 256 (though the text also circulated independently; see following note). The vision is discussed in P. Dutton, *The politics of dreaming in the Carolingian empire* (Lincoln Nebraska, 1994), pp. 183–93.

³¹ As also inferred by M. van der Lugt, 'Tradition and revision: the textual tradition of Hincmar of Rheims's *Visio Bernoldi*', *Bulletin du Cange* 52 (1994), 109–49, at 113.

³² A Count Othar is mentioned in *DCB* no. 425 (877) as recently deceased ('olim'): he had held fiscal land at Sarcy in the Tardenois.

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The Carolingian advocate

If the semantic shift in the (vernacular) word *mallum* appears to indicate a regearing of concepts of public justice, to centre them more firmly on the count and by implication the king, the concept of the Carolingian advocate points in a parallel direction.³³ As we have seen, Carolingian kings emphasised the importance of the count's court for dealing with local issues, and placed the *mallum* court at the centre of local society. However, canon law, like the sixth-century Council of Carthage, firmly forbade priests and especially monks from attending secular courts, and this was reinforced in ninth-century texts, too, since insulating clerics and monks from the outside world was a central objective of Carolingian reform.³⁴ The tension between these two priorities did not escape contemporaries' notice: a canon law reference to public courts (*publium iudicium*), to the effect that clerics should avoid them, was glossed as '*in mallo*' in one ninth-century Rheims manuscript, and Archbishop Hincmar made the connection perfectly explicit.³⁵

Again, however, there is more than just anecdotal evidence to suggest that new conceptions of public courts were coming into conflict with older and reinvigorated ideas about clerical immunity. To ensure that the massive wealth and resources concentrated around monasteries were integrated into the formal court system, a systematic solution was devised – the ecclesiastical advocate. According to capitulary texts, abbots, abbesses and bishops were to appoint advocates to represent them in legal matters, implicitly, and sometimes explicitly, at the *mallum* court, rather than representing themselves. This command can certainly not be dismissed as hot air from Aachen, because these advocates are prominent in ninth-century archival evidence from the area of interest here. For example, a charter of Lothar I for St-Mihiel on the Meuse shows the exemption system in full working order, envisaging *missi* and advocates as co-operating with counts in inquisitions before *meliores*

³³ I have discussed this issue in greater detail in 'The significance of the Carolingian advocate', *EME* 17 (2009), 186–206.

³⁴ Defined at the Council of Mainz 813 as one of the many *negotia saecularia*: *MGH Concilia* vol. III, p. 264 ('in placitis saecularibus disputare').

³⁵ See *HRE*, bk III, ch. 26, p. 335: 'quae de presbiteri et ecclesie causa ad episcopos et ad synodum diffinitio pertineat, non ad malli vel civilium iudicium dispositionem', repeated in Hincmar of Rheims, *Capitula*, ed. P. Brommer, R. Pokorny and M. Stratmann, *Capitula episcoporum*, 4 vols. (Hanover, 1984–2005), vol. II:II, ch. 21, extending the Council of Carthage proscription with a reference to the *mallum* court, again as representing secular justice. Regino does much the same: *Libri duo de synodaliibus causis*, ed. and tr. W. Hartmann, *Das Sendhandbuch des Regino von Prüm* (Darmstadt, 2004), bk II, ch. 111: 'in seculari iudicio, id est in comitis placito'. A capitulary in Metz, Bibliothèque Municipale †MS 226, explicitly stated that monks should not go to *mallum* courts.

homines; and in fact most monastic archives preserve references to individual, named advocates.³⁶

These ecclesiastical advocates were above all else mediating figures: not, or not primarily, mediating between the specialist knowledge of court and those seeking remedies (though in fact at least some advocates demonstrably had more than working knowledge of Frankish law), but rather between a secular form of judicial integration and a social *ordo* defined through separation from the world, but whose cultural and economic importance made total separation both impossible and undesirable. That this solution was to all intents and purposes novel, built essentially from scratch, shows the seriousness of purpose behind Carolingian ecclesiastical reform; but it also demonstrates the novel cultural importance allotted to the secular courts, and particularly the count's court in the locality. Ecclesiastical advocates, in other words, tell us just as much about secular courts as they do about monasteries. When placed alongside the evidence of the semantic shifts of the *mallum*, and its insistent association with the count, we have the impression of a conceptual realignment, quite clearly promoted from the centre, whose aim was to orientate local community justice with the formal Carolingian hierarchy of authority, and to iron out internal ideological tensions which might have impeded the development of the *mallum* court. This was a systematic project, for which there is systematic evidence in this area.

BISHOPS AND EPISCOPAL ORGANISATION

To concentrate solely on superficially 'secular' arms of government like counts in setting out the evidence for the formal institutions that integrated the lands on either side of the Meuse into Carolingian rule would be painfully anachronistic, blinding us to important ways in which ninth-century society was caught up in formal institutional authority.³⁷ The importance of bishops in Carolingian society at large is now well-acknowledged, as is their centrality to kingship and the exercise of power in the localities.³⁸ Accordingly, a survey of institutional authority between Marne and Moselle needs to consider bishops in some detail.

To some extent, this is an easier task, for if the Carolingian count in the region can best be seen side-on, the same is not true of Carolingian bishops and the institutions they headed. Even if northern Frankish bishops

³⁶ *DLothI*, no. 53. Cf. *DCB* no. 375 for Charroux.

³⁷ See de Jong, 'Ecclesia and the early medieval polity'.

³⁸ See the magisterial S. Patzold, *Episcopus: Wissen über Bischöfe im Frankenreich des späten 8. bis frühen 10. Jahrhunderts* (Ostfildern, 2008).

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apparently sometimes still used papyrus in the ninth century, enough parchment has survived to give us a clear picture of the Carolingian church in this area.³⁹ The scale of the organisations centred upon bishops should not be underestimated. According to Hincmar himself, the Archbishop of Rheims had at his disposal the combined prayers of more than five hundred canons, monks and nuns, divided amongst ten monasteries.⁴⁰ The other cities in this area (with the possible exception of Trier) could not match that, but communities of canons, usually a few dozen men, were becoming organised everywhere in the ninth century, increasingly acquiring an independent share of the bishopric's wealth.⁴¹ Still, the bishops remained dominant, keeping a controlling stake in their cities: there are no unequivocal references to counts of Rheims and even when we do hear of counts of cities, such as at Troyes and Metz, there is little evidence to suggest that they competed with bishops within the urban space. The Archbishop of Rheims had a prison, run by a *vicedominus*.⁴² He probably also took responsibility for fortification, for notwithstanding the permission acquired in the early ninth century to demolish the ancient Roman wall, remnants of a Carolingian fortification around Rheims have recently been unearthed.⁴³ Though the precise scale of the commercial activity that went on in these cities remains uncertain, there is no doubt they were economic centres, too.⁴⁴

Kings, history and Rome

This wealth of evidence should not lull us into supposing that we have a total view, for we know that much more has been lost.⁴⁵ Enough survives

³⁹ *MGH Epp.*, vol. vi, p. 214, with editorial note. A general survey covering most of the places in this region is provided by R. Kaiser, *Bischofsherrschaft zwischen Königtum und Fürstenmacht* (Bonn, 1981).

⁴⁰ *HRE*, bk iii, ch. 26, p. 334: Hincmar encouraged Count Gerard to continue defending Rheims's lands by noting the power of prayer 'in Remensi ecclesia'. Cf. the comparable situation at Cologne, *DLothII*, no. 25.

⁴¹ Organisation: *DLP* no. 658 (Toumai), confirmed by *DCB* no. 173. For Rheims, see *HRE*, bk iii, ch. 10. Cf. *DCB* no. 352 (Langres) and *DA*, no. 113 (Trier). Share in wealth: *DCB* nos. 125 and 477 (Châlons), 137 (Paris), and 150 (Langres), both confirming charters of Louis the Pious. St-Arnulf Metz, too, had a series of such grants, from Lothar I onwards. Scale: Toul counted sixty canons in 885 (*DA*, no. 124).

⁴² *HRE*, bk iii, ch. 28, p. 356.

⁴³ Unpublished excavations at the Médiathèque (1998–2000), summarised on the INRAP website, www.inrap.fr/archeologie-preventive/Sites_archeologiques/p-896-Mediatheque-Cathedrale.htm

⁴⁴ *Miracula Bertini* (BHL 1291), ed. O. Holder-Egger, *MGH SS*, vol. xv:i (Hanover, 1887), pp. 516–22, 1, ch. 9, for Verdun merchants on their way to Spain. See in general O. Bruand, *Voyageurs et marchandises aux temps carolingiens: les réseaux de communication entre Loire et Meuse aux VIII^e et IX^e siècles* (Brussels, 2002).

⁴⁵ W. Hartmann, 'Die Capita incerta im Sendhandbuch Reginos von Prüm', in O. Münsch and T. Zotz, eds., *Scientia Veritatis. Festschrift für Hubert Mordek zum 65 Geburtstag* (Ostfildern, 2004), pp. 207–26, is a good example.

from this area, however, to be able to show how bishops contributed to integrating their dioceses into wider networks, in several distinctive ways. Most obviously, bishops acted as points of contact with kings, who took a keen interest in matters of their appointment and management. The reason for this is not difficult to fathom. In addition to large amounts of moveable wealth, bishops between Marne and Moselle controlled large amounts of landed property, sufficient in extent to require justification based on innovative readings of awkward biblical passages.⁴⁶ The precise extent of these resources is more or less impossible to determine, not simply for lack of evidence, but because they might be temporarily depleted by the king and conversely expanded through bishops' considerable and often resented influence over local monasteries, in spite of the nominal autonomy bestowed through charters of immunity – indications of these kinds of conflicts survive from St-Bénigne, St-Médard and St-Denis.⁴⁷ Though an extension of episcopal responsibility to regulate saints' cults, bishops were also keen to acquire monasteries for less elevated reasons, and land granted by bishops to their followers, so-called 'precaria grants', was often drawn from monastic estates.⁴⁸

Given such wealth, having a capable leader mattered not only to the particular church, it also mattered to the king.⁴⁹ Lip-service was paid to the principle of election, but ninth-century episcopal appointment was almost entirely a matter for royal assent, if not in fact outright royal initiative, so little wonder that the lobbying around appointments was intense.⁵⁰ Getting the

⁴⁶ Hincmar, *Opusculum*, p. 167. Council of Tusey 860, *MGH Concilia*, vol. iv, p. 22. For portable wealth, see Hincmar, *Epistolae*, PL, vol. cxxvi, col. 32. See D. Ganz, 'The ideology of sharing', in W. Davies and P. Fouracre, eds., *Property and power in the early Middle Ages* (Cambridge, 1995), pp. 17–30. Episcopal treasures are noted at Cologne (*AB* s. a. 864), Metz (*AB*, s. a. 882), Rheims (*HRE*, bk iii, ch. 5, pp. 197–9 and *Vita Remigii*, ed. B. Krusch, *MGH SRM*, vol. v (Hanover, 1896), pp. 239–341, p. 262), and Châlons (*HRE*, bk iii, ch. 23, p. 314).

⁴⁷ *MGH Epp.*, vol. v, pp. 363–8; *Vita Medardi*, ed. D. Papebroch, *AASS Junii*, vol. ii (Anvers 1698), cols. 82–6, ch. 2, with a unmissable moral edge; *Gesta Dagoberti I regis Francorum*, ed. B. Krusch, *MGH SRM*, vol. ii (Hanover, 1888), pp. 399–425, at p. 402. Cf. the criticism articulated in *DCB* no. 440 for Manglieu against the Bishop of Clermont.

⁴⁸ Precaria: for example, 'Die älteren Urkunden des Klosters S. Vanne in Verdun', ed. H. Bloch, *Jahrbuch der Gesellschaft für Lothringische Geschichte und Altertum* 10 (1898), 338–449 and 14 (1902), 48–150, no. 2 (771); 'Charte de Metz accompagnée de notes tironiennes', ed. J. Havet, *Bibliothèque de l'Ecole des Chartes* 49 (1888), 95–101.

⁴⁹ *Annales Xantenses*, ed. B. von Simson, *MGH SRG* vol. xii (Hanover, 1909), pp. 7–33, s. a. 869, detailing the troubles of *parvuli*, *sacerdotes* and *nobiles* in the absence of Gunthar. See *MGH Formulae*, pp. 549–50, for a letter of Louis the Pious about episcopal appointment perhaps connected with Verdun.

⁵⁰ Frothar of Toul, *Epistolae*, ed. and tr. M. Parisse, *La correspondance d'un évêque carolingien, Frothaire de Toul (ca 813–847), avec les lettres de Theuthilde, abbesse de Remiremont* (Paris, 1998), nos. 15–17, pp. 120–6; cf. *MGH Formulae*, p. 549. Cf. Hincmar, *Epistolae*, PL, vol. cxxvi, col. 112, about Louis the Stammerer's attitudes to the control of bishoprics and their property; and col. 267 on the case of Senlis. Cf. also *Metropolis Remensis historia*, ed. G. Marlot, 2 vols. (Rheims 1666), vol. i, col. 501 (883). Several bishops are known to have passed through the royal chapel or administration: for example, Hubert of Meaux was a

right man in the job was vital for the king: as King Charles the Bald wrote in 866 about a candidate he was promoting (a former priest of Rheims) to be an archbishop of Bourges, 'if we did not have such a man in our kingdom, we would have to drag him out from another'.⁵¹ Compliance with the royal will was advisable, because if the king did not get on with the bishop, the entire bishopric would suffer, which is why one abbot, Lupus of Ferrières, considered that contemporary bishops were degenerate, too willing to listen to the king and too afraid to speak up to him.⁵²

Chosen by the king, and regularly attending the king's councils, the bishops therefore put their impressive resources at the king's disposal.⁵³ Not the least of their duties was co-ordinating prayer in emergencies, as Bishop Adventius of Metz did during a Viking attack in 867.⁵⁴ More concretely, Toul and Rheims can also be shown to have contributed to the construction and maintenance of royal palaces at Gondreville and Aachen.⁵⁵ Military organisation was also important. The letters of Bishop Frothar of Toul show the role allocated to bishops and archbishops in organising military service, and their role in managing the episcopal contingents that formed the backbone of Carolingian armies is widely recognised.⁵⁶ The king viewed episcopal lands as a useful resource for rewarding his soldiers, and the Carolingian kings introduced a formalised borrowing 'when necessary', in which the church received recognition of its rights via payment of a regulated *census*, an arrangement attested by evidence from Toul, Rheims, Châlons and Beauvais.⁵⁷ Many bishops, like Archbishop Hincmar of Rheims, were appointed to act as *missi dominici*, and some of the letters that responsibility generated have been mentioned above.⁵⁸

However, the integration of the diocese into the formal structures of power was not simply a matter of the bishop acting as a conduit for royal

precentor palatii (Hincmar, *Epistolae*, PL, vol. cxxvi, col. 153). Cf. *HRE*, bk iii, ch. 21, p. 275, bk iii, ch. 24, p. 327; and bk iii, ch. 28, p. 360. Some electoral permissions survive for monasteries (e.g. *DLothI*, no. 53 for St-Mihiel and cf. *MGH Formulae*, pp. 261–2).

⁵¹ Council of Soissons 866, *MGH Concilia* vol. iv, p. 209.

⁵² Lupus of Ferrières, *Vita Maximini* (BHL 5824), ed. B. Krusch, *MGH SRM* vol. iii, pp. 71–82, p. 76. An example slightly out of our area is given by *DLothI*, no. 124, concerning Lyon.

⁵³ *DLothI*, no. 67.

⁵⁴ 'Mandement inédit d'Adventius de Metz à l'occasion d'une incursion normande (mai-juin 867)', ed. D. Misonne, *Revue bénédictine* 93 (1983), 71–9.

⁵⁵ *DLP* no. 801.

⁵⁶ J. Nelson, 'The church's military service in the ninth century', *Studies in Church History* 20 (1983), 15–30; Frothar, *Epistolae*, no. 26, p. 136.

⁵⁷ Toul: *DA* no. 112. Frothar, *Epistolae*, no. 9, pp. 104–6, complaining about forty-eight *mansi*, for most of which *census* was not being paid. Rheims: Hincmar, *Epistolae*, PL, vol. cxxvi, col. 813. *DCB* nos. 212 (Châlons) and 254 (Beauvais). For explanations based on necessity, see *DLothII* no. 9, referring to Lothar I and to himself; *DLothII* no. 17, for lack of land; *DCB* no. 75 likewise.

⁵⁸ For example, *HRE*, bk iii, ch. 18, p. 255.

authority. Ninth-century bishops in this area also played a crucial part in consolidating cultural identities, again serving to promote a wider frame of reference for their diocesans. As individuals, they were often, indeed probably usually, highly educated. Some, like the bishops of Metz, acted as patrons to scholars, others, like the bishops of Laon, organised cathedral schools.⁵⁹ An 868 text from Archbishop Hincmar's Rheims gives a wonderfully vivid account of the interrogation a bishop-elect underwent before his consecration, showing Willibert of Châlons being put through his paces by questions about his faith and delicate theological matters.⁶⁰ Not all were as virtuously learned as Bishop Hincmar of Laon, but he was probably not the only bishop to be presented with a book of canon law on his ordination, and at least one was refused consecration because he was found to be intellectually not up to scratch.⁶¹

Interesting in its own right, this point has an institutional dimension. Bishoprics, in this area all based in old Roman *civitates* (with the partial exceptions of Toul and Laon), were concentrations of spiritual and cultural resources as well as material ones, reservoirs of institutional memory.⁶² The certainty of the past in Carolingian Francia was both highly prized and perceived as under constant threat. Collating old manuscripts of the works of St Augustine preserved in various cities and monasteries, Hincmar of Rheims was horrified to find that many of the oldest had been altered through the addition of new quires in a modern script.⁶³ Hincmar's panic reflects the duty of bishops and their clerics to maintain a continuity with the past. Lists of the names of former, often ancient, bishops were carefully preserved for ceremonial recitation.⁶⁴ Though the flowering of bishop-centred history-writing was yet to come, Metz was the first bishopric north of the Alps to boast a history of its bishops, and Verdun had one before the close of the ninth century. A lack of information about the distant past of a bishopric could be predictably attributed to the negligence of previous generations of clerics, arrestingly imagined at Rheims as wrapping up the pennies earned from

⁵⁹ J. Contreni, *The cathedral school of Laon from 850 to 930: its manuscripts and masters* (Munich, 1978). For Muretach's Metz connection, see the Introduction to his *In donati artem maiorem*, ed. L. Holtz, CCCM, vol. XI (Turnhout, 1977), pp. xxiii–xxviii.

⁶⁰ *MGH Concilia*, vol. IV, pp. 320–3.

⁶¹ For the canon law manuscript (perhaps Paris BnF lat. 12445), see Hincmar, *Opusculum* p. 145 and Hincmar, *Epistolae*, PL, vol. CXXVI, col. 544 and col. 558. For the refusal to consecrate Gislemar on intellectual grounds, see *MGH Concilia*, vol. IV, pp. 239–40.

⁶² The topographical and hagiographical history of the bishoprics is conveniently covered in a series of books edited by N. Gauthier, *Topographie chrétienne des cités de la Gaule: origines au milieu du VIII^e siècle*, 8 vols. (Paris, 1986–), with volumes on Rheims, Trier and Cologne.

⁶³ Hincmar, *Collectio de una et non trina deitate*, PL, vol. CXXV, col. 473–618, at col. 512–13.

⁶⁴ Hincmar, *Epistolae*, PL, vol. CXXVI, col. 42, for references to lists in Trier, Cologne and Rheims.

illicit business in old charters and the pages of ancient books.⁶⁵ Nevertheless, there was enough left to allow episcopal clerics to posit a more or less continuous institutional history from around 600 onwards for most of the bishoprics in the area.⁶⁶

Contemporaries, though, insisted on a still wider chronological frame, for most ninth-century bishops saw themselves as standing in a line of apostolic succession to their sees, and all viewed themselves as successors to the Apostles in a broader sense, integrating their dioceses into the remote past.⁶⁷ No wonder, then, that these were Rome-centred places. Already, by the ninth century, Metz had a reputation for formidable proficiency in Roman-style chant, recognised even in Rome, and indeed its *Gesta Episcoporum*, and in fact its liturgical organisation, were all based on Roman models, while its cultural ambitions tackled ancient Rome, too.⁶⁸ Rheims, for its part, had acquired by the 840s a map of Rome, consulted to verify the authenticity of recently acquired relics of St Helen, themselves brought from Rome.⁶⁹ Precious objects, like Remigius's phial of heaven-sent chrism or his chalice, encapsulated these claims and connected the present to the distant past, as did Rheims's impressive collection of relics;⁷⁰ as still more obviously did the huge Roman remains prominent then (as now) in the former Roman imperial capital at Trier. There was also a constant flow of people going to and returning from

⁶⁵ *Vita Remigii*, pp. 251–2, where Milo's depredations are blamed for the loss of knowledge about Remigius. Cf. Verdun's *Vita Pauli*, ed. J. Mabillon, *AASS Feb.*, vol. II (Anvers, 1658), col. 177, blaming the loss on *negligentia*.

⁶⁶ For example, Toul's records stretched back reliably to the seventh century: *Gesta episcoporum Tullensium*, ed. G. Waitz, *MGH SS*, vol. VIII (Hanover, 1848), pp. 631–48, at p. 635. Rheims archives appear to have been significant from the 590s onwards: see *HRE*, bk II, ch. 1, p. 132, no. 7, bk II, ch. 4, p. 141, ch. 11, p. 158; and above all, bk II, ch. 19, p. 175.

⁶⁷ Paul the Deacon is emphatic on this in his *Gesta episcoporum Mettensium*, ed. G. Pertz, *MGH SS*, vol. II (Hanover, 1829), pp. 260–8; cf. *HRE* bk I, ch. 3, p. 66, that gives the same origin to Châlons – cf. the ninth-century *Vita Memmii*, ed. J. Sollerius, J. Pinius, G. Cuperus and P. Boschius, *AASS Aug.*, vol. II (Antwerp, 1735), col. 11. Beauvais's case is also ninth-century, via the *Passio Luciani*, ed. J. Bolland, *AASS Jan.*, vol. I (Antwerp, 1664), cols. 461–6. Troyes's is less certain: on Potentius, see I. Crété-Protin, *Église et vie chrétienne dans le diocèse de Troyes du 4 au 9 siècle* (Villeneuve-d'ascq, 2002), pp. 69–79. Except Laon, they all would claim apostolicity by the twelfth century: Hugh of Flavigny, *Chronicon*, ed. G. Pertz, *MGH SS*, vol. VIII, pp. 280–503, at p. 289. The notion that bishops were the successors to the Apostles in a general sense was very common: see 829 Council of Paris, *MGH Concilia*, vol. II:ii, p. 629. Cf. T. Bauer, *Lotharingen als historischer Raum: Raumbildung und Raumbewusstsein im Mittelalter* (Cologne, 1997), pp. 347–76.

⁶⁸ Notker, *Gesta Karoli Magni*, ed. H. Haefele, *MGH SRG n. s.*, vol. XII (Berlin, 1959), ch. 10. For the liturgical organisation of Metz, see M. Clausen, *The reform of the Frankish church: Chrodegang of Metz and the Regula canoniconum in the eighth century* (Cambridge, 2004). For Roman recognition, see John the Deacon, *Vita Gregorii*, ed. PL, vol. LXXV, col. 59–242, at col. 91.

⁶⁹ *Historia translationis Helenae* ed. J. Sollerius, J. Pinius, G. Cuperus and P. Boschius, *AASS Aug.*, vol. III (Antwerp 1737), col. 601–3, at col. 602, 'profertur in medium mappa Romanae urbis'.

⁷⁰ *Vita Rigoberti* (BHL 7253), ed. W. Levison, *MGH SRM* 7, pp. 58–78, at p. 78, including various objects from the life of Christ, plus relics from the Apostles, nineteen martyrs and six confessors.

Rome, not least priests hopeful of their chances of persuading the Pope to revise disciplinary measures meted out by meticulous diocesan bishops.⁷¹

Pastoral care

If bishops integrated their dioceses into wider networks, they also played a role in integrating communities within their dioceses too. This took place most obviously by means of the bishop's physical presence. Bishops were by canon law obliged to travel around their dioceses as part of their episcopal duty, and these regions have some of the best evidence from Frankish Europe to show that they actually did. A late ninth-century Lotharingian manuscript, now in Munich, contains the earliest known account of an episcopal visitation of a village, involving the interrogation of the villagers and of the priest about questions of faith and morality. This episcopal visitation, or 'Sendgericht', was attested throughout the ensuing Middle Ages, but seems to have been a ninth-century innovation from east of the Meuse, indicating a very hands-on attitude to the saving of souls.⁷²

Probably more important, though, in creating connections between the bishop and his diocesans were the episcopally supervised networks of local churches in the countryside. There may have been small communities of clerics engaged in pastoral work between Marne and Moselle, along the lines of the so-called 'minsters' of Anglo-Saxon England, perhaps using crosses set up in the countryside to focus local religiosity.⁷³ However, though the evidence is currently fragmentary, there are archaeological indications for ninth-century local churches, some even associated with burials, at Pompey (Meurthe-et-Moselle) and Kimmlinger, and there are standing buildings that may incorporate ninth-century elements, for example at Heiligenbösch near Trier.⁷⁴ The overwhelming impression from the contemporary textual evidence from this area is of individual priests serving in single churches for individual communities, which we should think of as

⁷¹ This particularly bothered the (very meticulous) Hincmar of Rheims: see his *De presbiteris criminosis: ein Memorandum Erzbischof Hinkmars von Reims über straffällige Kleriker*, ed. G. Schmitz, *MGH Studien und Texte* 34 (Hanover, 2004).

⁷² The manuscript in question is Munich, Bayerische Staatsbibliothek Clm. 3851. For context, see W. Hartmann, 'Zu Effektivität und Aktualität von Reginos Sendhandbuch', in W. Müller and M. Sommar, eds., *Medieval church law and the origins of the Western legal tradition* (Washington, DC, 2006), pp. 33–49.

⁷³ J. Semmler, 'Mission und Pfarrorganisation in den rheinischen, mosel- und maasländischen Bistümern 5–10 Jahrhundert', *Settimane* 28 (1982), 813–88. For crosses, *HRE*, bk 1, ch. 25, p. 129; *HRE*, bk iv, ch. 41 p. 444; *Vita Medardi*, ch. 1.

⁷⁴ E. Peytremann, *Archéologie de l'habitat rural dans le nord de la France du IV^e au XI^e siècle* (Saint-Germain-en-Laye, 2003), vol. 1, p. 301; vol. II, pp. 249–50. On Kimmlinger, see B. Bienert, 'Zur frühmittelalterlichen Besiedlung Triers und des Trierer Landes', in H. Anton and A. Haverkamp, eds., *Trier im Mittelalter* (Trier, 1996), pp. 149–50. For a survey, see M. Polfer, 'Spätantike und

parishes.⁷⁵ Hincmar of Rheims's episcopal statutes assumed that individual priests staffed their own churches in a very agrarian setting, and there is good reason to assume that significant settlements were equipped with churches, and perhaps less significant ones too.⁷⁶ The Pseudo-Isidorian decretals, a canon law text widely disseminated in our area, demanded that a priest might only be accused by forty-four male witnesses, who should be without infamy, married with children and Christian. Archbishop Hincmar revealingly interpreted these witnesses as heads of peasant holdings (*mansi*), dryly observing that since many priests did not have so many parishioners (*parochiani*) as that, they would thereby be immune from accusation.⁷⁷ Assuming a family size of approximately five or six, it follows that some church communities around Rheims contained only around 250 or 300 people, an estimate further supported by texts relating to Langres.⁷⁸

The level of episcopal interest in local priests and local churches was considerable and sustained in the ninth century. Complementing the attention paid to local priests in general church councils, and associated texts such as directions on how to hold diocesan synods (such as that preserved in Troyes Bibliothèque Municipale MS. 1979, a manuscript with a Lotharingian provenance), episcopal direction is demonstrated above all by the extraordinary series of statutes, many issued in this area.⁷⁹ The bishops who issued these texts intended nothing to be left unclear, laying out priests' duties with an eye to detail. Archbishop Hincmar, whose statutes have already been mentioned, wanted his priests to learn a number of texts by heart: expositions of the creed and Lord's prayer, the Athanasian creed, the canon of the mass and at least one sermon of

frühmittelalterliche Kirchenbauten der Kirchenprovinz Trier: einen Bestandaufnahme aus archäologischer Sicht', in *L'évangélisation des régions entre Meuse et Moselle et la fondation de l'abbaye d'Edternach (v^e–IX^e siècle)* (Luxembourg, 2000), pp. 37–92.

⁷⁵ For Carolingian innovation, see J. Semmler, 'Zehntgebot und Pfarftermination in karolingischer Zeit', in H. Mordek, ed., *Aus Kirche und Reich* (1983), pp. 33–44.

⁷⁶ E.g. Hincmar of Rheims, *Capitula*, vol. 1, ch. 5, p. 36 ('quisque presbiter in sua ecclesia' ... 'per mansiones et agros ac vineas'); ch. 8, p. 38, recommending the priest undertake some *opus rurale*; *Capitula*, vol. II, ch. 1, p. 45, investigating which villages churches are in; ch. 11, p. 48, enquiring whether the priest has an assistant cleric, and ch. 17, p. 50, urging priests to support as *matricularii* the poor, not ploughmen or pigmen.

⁷⁷ Pseudo-Isidore, *Decretales*, ed. P. Hinschius, *Decretales Pseudo-Isidorianae et Capitula Angilramni* (Leipzig, 1863), p. 449. 'Sunt enim apud nos presbyteri, qui tot parochianos non habent, qui mansa teneant': Hincmar of Rheims, *De presbiteris criminosus*, p. 95.

⁷⁸ Discussed from a different perspective in my 'Unauthorised miracles at Dijon and the Carolingian church reforms', *Journal of Medieval History* 36 (2010), 295–311.

⁷⁹ The Council of Rheims 813 is a good example of a general council in which priests were instructed about the *ratio missarum*, the *ratio baptisterii*, and the *ratio paenitentiae*: *MGH Concilia*, vol. II:1, pp. 254–5. The episcopal capitularies have been helpfully studied by C. van Rhijn, *Shepherds of the Lord: priests and episcopal statutes in the Carolingian period* (Turnhout, 2007). It may be noted that the *Gesta episcoporum Virdunensium*, ed. G. Waitz, *MGH SS*, vol. IV (Hanover, 1841), pp. 38–45, implies that Berard of Verdun issued a set (p. 45), though if so they do not survive.

Gregory the Great, and further noted that priests might be obliged to show their books to bishops, an eventuality discussed in Metz too.⁸⁰ Hincmar was even prepared to promise a horse and cloak to anyone who caught a priest in a tavern.⁸¹ The ecclesiastical hierarchy expected a full provision of religious services in the locality, and indeed relied on this as a conduit of information.⁸² In the political crisis of 858/9, Hincmar sent texts to the priests throughout the villages to be read out to those causing trouble.⁸³ Communion three times a year was not thought to be enough, and it was for the dying newborns and the sick requesting the *viaticum* that Hincmar pleaded when one local priest announced he was considering leaving his parish to join a canonical community.⁸⁴

One may legitimately question whether these normative sources reflected reality; yet even setting aside the considerable success of the texts that preserve them in manuscript terms – they were frequently copied – there is good reason to suppose that they did, in this area, anyway. Firstly, bishops often were visibly as concerned as they claimed to be. They really did refuse to consecrate churches with bodies in, and try to move parish churches to more suitable locations.⁸⁵ They really did distribute texts relating to canon law to local priests, and there is evidence too that liturgical requirements were carried out.⁸⁶ They really did introduce a network of archdeaconries to assist with the management of the diocese.⁸⁷ And though negligent priests tried to evade the bishop's control, for example supporting each other by oath, sometimes these priests really were deposed.⁸⁸

⁸⁰ Hincmar, *Capitula* no. 1, ch. 1. Books: Council of Metz 893, edited in *UBMR*, no. 127 (wrongly attributed to Trier).

⁸¹ Hincmar, *Capitula* no. II, ch. 20, p. 52.

⁸² Cf. M. Stratmann, *Hincmar von Reims als Verwalter von Bistum und Kirchenprovinz* (Sigmaringen 1991), pp. 6–7.

⁸³ Hincmar of Rheims, *De Coercendis militum rapinis*, *PL*, vol. cxxv col. 953–6, at col. 954. He sent an exemplar to the king too: the text survives, *MGH Epp.*, vol. VIII, p. 60–2. For the royal arbitration of parochial church status, see Hincmar of Rheims, *Collectio de Ecclesiis et Capellis*, *MGH Fontes iuris Germanici*, ed. M. Stratmann, (Hanover 1990), vol. XIV, p. 63; and *ibid.*, p. 101 for prayer for the king.

⁸⁴ Hincmar of Rheims, *Opusculum*, p. 146 for Aguilcourt.

⁸⁵ *Vita Frodoberti* (BHL 3178), ed. M. Gouillet, *Adonis Dervensis opera hagiographica*, *CCCM*, vol. CXCVIII (Turnhout, 2003), p. 44, referring to Bishop Prudentius of Troyes. Also for Troyes, see Hincmar's *Collectio de Ecclesiis*, p. 63. Heiric, *Miracula S. Germani*, ed. J. P. Migne, *PL*, vol. cxxiv, col. 1207–72 documents attempts by bishops of Langres to move a hilltop church at Larrey 'intra villae ambitum' (col. 1232).

⁸⁶ 'Neue Texte zur bischöflichen Reformgesetzgebung aus den Jahren 829/31. Vier Diözesansynoden Halitgars von Cambrai', ed. W. Hartmann, *Deutsches Archiv* 25 (1979), 368–94. For liturgies in practice, see *Collectio de Ecclesiis*, p. 81, where Hincmar cites the *Ordo Romanus* for the consecration of a church.

⁸⁷ See above, n. 82.

⁸⁸ Hincmar of Rheims, *De presbyteris criminosi*, pp. 86–7; and his *Epistolae*, *PL*, vol. cxxvi, cols. 231 and 254.

Secondly, we can often see that this theory of pastoral provision had been implemented in practice. Sometimes the evidence is negative: the absence of a local priest at the *villa* of Aguilcourt (in the diocese of Laon) led to babies dying unbaptised, and the sick passing away without the comfort of *viaticum*: deaths which not only could be, but actually were, totted up.⁸⁹ And there are a number of texts in which these local priests and the communities they served come more directly into the spotlight, showing parish priests fully integrated into the local communities. Priests were respectable local people, worth stealing from, and *de facto* village leaders, too. Many seem to have taken their task seriously, like the priest at Cond, a church on the Moselle, whose basic duties were carefully recorded in a mid-ninth-century charter from Stavelot.⁹⁰ The impression given by administrative texts that local churches were reasonably well stocked with all kinds of texts is confirmed by extant manuscripts, such as the penitentials that seem designed for the use of local priests – for example, London British Library Addit. 19725 from around Rheims, whose status as a pastoral handbook seems confirmed by marginal notes such as the remedy for pig-disease entered into f. 41r, or Verdun, Bibliothèque Municipale 69, a mid-ninth-century penitential manuscript from Lotharingia, into which penitential prayers were added in the late ninth and early tenth centuries (f. 11).⁹¹ The texts that manuscripts of this kind contained, such as the Penitentials of Bede/Egbert or of Pseudo-Theodore, which themselves referred to priests' book collections, were often the product of compilation from, again, just this part of Francia, where they circulated widely.⁹² Similar arguments could easily be mounted for the liturgical texts that local priests also needed, such as baptismal commentaries. Both Munich Clm 14508 and Laon

⁸⁹ Discussed briefly by van Rhijn, *Shepherd*, pp. 181–2, and in more detail by P. McKeon, *Hinamar of Laon and Carolingian politics* (Urbana, 1978), pp. 66–7.

⁹⁰ Cf. *Miracula Huberti* (BHL 3996–), ed. C. de Smedt, G. van Hooft and J. de Backer, *AASS Nov.*, vol. 1 (Paris, 1887), col. 819–29, at bk 1, ch. 6, col. 820; and Heiric, *Miracula Germani*, *PL*, vol. cxxiv, col. 1237, the latter concerning a priest near Soissons. Note Regino's comment about priests rewarding those women who made donations at mass (*Libri duo*, bk 1, ch. 202, source unknown): 'quidam presbyteri . . . calicem Domini mulierculis quae ad missas offerunt tradant'. This chapter incidentally includes one of the first references to oral delivery of communion, avoiding the recipients' hands. For Cond, see *Recueil des chartes de l'abbaye de Stavelot-Malmédy*, ed. J. Halkin and C. G. Roland (Brussels, 1908), no. 32 (857).

⁹¹ The polyptych of St-Rémi gives occasional details on local churches' book collections. For example, the church in the village of Sault-Saint-Rémi had a missal, an antiphony, a psalter, forty homilies of Gregory the Great, and a penitential of Bede (*Le polyptyque*, ed. Devroey, p. 53). The Verdun manuscript also has cryptographic ('magical?') texts entered into the margins in an early medieval hand, for instance at f. 1v. Only thirteen folios in length, it is unclear whether it is a fragment of a larger manuscript or not.

⁹² See L. Körntgen, 'Bußbuch und Bußpraxis in der zweiten Hälfte des 9. Jahrhunderts', in W. Hartmann, ed. *Recht und Gericht in Kirche und Welt um 900* (Munich, 2007), pp. 197–215.

Bibliothèque Municipale, MS 288, manuscripts originating from this area, have been identified as 'priests' readers', that is, as collections of texts that a local priest would have found extremely helpful.⁹³

Inevitably, some priests became a little too much a part of local society. One priest from the area, a man named Trising, managed a hat-trick of offences, becoming involved in a brawl relating to an accusation of sexual misconduct as he made his way back from a tavern in Mouzon.⁹⁴ Yet such behaviour demonstrably provoked complaints. The outraged parishioners in Vanault (Marne), near Châlons, acted to prevent their priest Angelric from getting married to a certain Grimma in the late ninth century by complaining to their bishop.⁹⁵ Providing explicit testimony to the value placed on pastoral care, the parishioners of Folembay near Laon complained to the bishop that they were unjustly deprived of their priest, despite having given gifts and tithes to the church there for as long as anyone could remember, since at least the late eighth century (and the names of seven consecutive priests at Folembay could be given). It may well be that the priest was usually appointed in practice by the lord of the village – and that the Bishop of Laon's attempt to abolish the parish of Folembay, which sparked this particular dispute, was aimed at one of these lords. Nevertheless it was the residents, not the lord, who had complained, and it was the residents with whom the Bishop of Laon was exhorted to negotiate.⁹⁶

Perhaps some of the reason that villagers in the area were so interested in their priest's morality was because they had themselves invested considerably in their church. The episcopal expectation of local pastoral provision was reciprocated. Villagers seem to have been keen to take holy water home from the local church with them, to sprinkle their houses, fields and vineyards, their cattle and the cattle's fodder, and their own food and drink, testifying to their faith in its efficacy, and they left their unwanted babies at the parish church.⁹⁷ It therefore comes as no surprise to learn that the Frankish inhabitants of the village of Aguilcourt had made a few small donations in order to be buried by the chapel, which, like the church at Folembay, was independently endowed, just as councils and

⁹³ S. Keefe, *Water and the word: baptism and the education of the clergy in the Carolingian empire*, 2 vols. (Notre Dame, 2002), vol. 1, pp. 160–4.

⁹⁴ Hincmar of Rheims, *Epistolae*, PL, vol. CXXVI, col. 646.

⁹⁵ Mancio, Bishop of Châlons, *Epistola*, PL, vol. CXXXI, col. 23 (c.900).

⁹⁶ Hincmar of Rheims, *Epistolae*, PL, vol. CXXVI, col. 529: 'Sigebertus cui illud beneficium dedi a me secundum antiquam consuetudinem clericum petiit.'

⁹⁷ Theoretical prescription: Hincmar of Rheims, *Capitula* no. 1, ch. 5, p. 36. Practice: *Historia translationis Germani* (BHL 3474–6), ed. AASS Maii, vol. VI, ed. G. Henschenius (Antwerp, 1688), cols. 788–96, at cols. 791–2. Cf. Regino, *Libri duo*, bk II, ch. 68.

capitularies envisaged.⁹⁸ Only one charter preserves a grant to a local church, from Wissembourg in the late eighth century, but small-scale donations are indirectly attested in many texts.⁹⁹

Residents also paid for their church via their tithes. In 813, it was confirmed that *coloni* were to pay tithes not to a monastery or bishopric, but to the local churches where their children were baptised and where they regularly heard mass.¹⁰⁰ Again, there is evidence for this in practice in this area. The disputes about Aguilcourt and Folembay both revolved around the distribution of tithes to local priests and the mechanisms of these payments (such as tithe-barns), the only point of dispute being which priest benefited. It was at least plausible that monks should become priests precisely for the sake of, and perhaps profit from, parochial care.¹⁰¹ Locals sometimes built their own church; very plausibly some of the three chapels at which Folembay's priest routinely sang mass, while remaining resident in Folembay, had been built by pious subscription, for they had not been granted parochial rights.¹⁰²

As a result, attendance at episcopally supervised churches and contact with the liturgy seems to have been regular.¹⁰³ We can assume that the bulk of the population had the chance to listen to a sermon every Sunday (even if some left church early deliberately to avoid it, as Archbishop Hincmar grumbled), to have their children baptised and to die with a priest at their bedside.¹⁰⁴ The point does not relate simply to a bland

⁹⁸ Theoretical prescriptions: see the Council of Worms 829, *MGH Capit.*, vol. II, p. 12 (repeated in Benedict Levita, *Capitularia*, ed. E. Baluze, *Capitularia regum Francorum*, 3 vols. (Paris, 1667), vol. I, col. 801–1232, at vol. I, ch. 100). This *mansus* was exempted from all service: so too, however, were *terrulae ac vineoli* given 'pro loco sepulturae' (Council of Fimes 881, *PL*, col. 1080). The *Episcoporum ad Hludowicum imperatorem relatio* of the 829 Council of Paris worried about priests who had 'despoiled' their own churches, taking their lands 'in prediola sua propria' (*MGH Capit.*, vol. II, p. 33); cf. the Council of Meaux-Paris 845, ch. 63, concerning those who give land for their burial (Regino also worried about this, *Libri duo*, bk I, ch. 127). On Aguilcourt, see Hincmar of Rheims, *Opusculum*, p. 147.

⁹⁹ *Traditiones*, ed. Glöckner and Doll, no. 181, for Dauendorf (Alsace). Cf. Hincmar of Rheims's instructions for Gottschalk's eventual burial (*PL*, vol. CXXVI, *Epistolae*, col. 93 and col. 274), Hincmar's *Collectio de Ecclesiis*, which included gifts of 'terrulae vel vineolae' within other oblations, p. 94. Such small donations are mentioned also in the polyptych of St-Rémi: *Le polyptyque*, ed. Devroey, e.g. ch. 15 (Ville-sur-Selve, p. 14) and ch. 22 (Sault).

¹⁰⁰ Council of Châlons 813, ch. 19 (*MGH Concilia*, vol. II, p. 277). Tithe disputes: Frothar, *Epistolae*, no. 31, p. 146. Hincmar's *Collectio de Ecclesiis* mentions a similar dispute around Soissons, p. 63.

¹⁰¹ Hincmar of Rheims, *De una et non trina deitate*, col. 503, with special reference to monks' preaching. Hincmar, *Capitula*, no. IV takes a more critical angle, ch. I, pp. 80–1.

¹⁰² *Miracula Remacii*, ed. J. Pinius, J. Stillingus, J. Limpenus and J. Veldius *AASS Sept.*, vol. I, cols. 696–721, at col. 700, mentions a church at Marche whose construction was co-ordinated by a certain *matrona* named Grimvara. Folembay: Hincmar, *Epistolae*, *PL*, vol. CXXVI, col. 537.

¹⁰³ Cf. D. Bullough, 'The Carolingian liturgical experience', *Studies in Church History* 35 (1999), 29–64.

¹⁰⁴ For avoiding the sermon, see Hincmar, *MGH Epp.*, vol. VIII, ed. E. Perels, (Berlin, 1939), p. 60: some people come to church 'non propter salutem, sed propter consuetudinem', and leave after the Epistle.

notion of 'Christianisation', but to a specific way of being Christian, the unflagging promotion of certain ways of seeing the world that were being explicitly and consciously promoted by bishops, who were themselves, as we have seen, in close contact with the king.¹⁰⁵

ROYAL POWER

Both counts and bishops, and the institutionalisation they represented, can be understood as agents of royal authority, creating the systems of organisation that characterise many historiographical perspectives on the ninth century. However, royal authority was also directly asserted in our area. Charlemagne dispersed a village for killing a local official, and Lothar I fined another village for murder.¹⁰⁶ We have glimpses of direct taxation levied to pay the Vikings: King Lothar II was able to impose a levy on peasant holdings across his kingdom, including many of the lands we are concerned with, on at least one occasion.¹⁰⁷ Royal minting made royal power tangibly evident, as did tolls.¹⁰⁸ Yet the most obvious aspect of royal resources in the area was the control of substantial landed resources.

Royal resources

Many historians have attempted to reconstruct the extent of royal estates in northern Francia, known as the *fisc*.¹⁰⁹ The reconstructions rely chiefly on royal diplomata which mention fiscal sites in passing or at the moment of alienation, though other sources like chronicles, estate management

¹⁰⁵ Cf. on this J. Nelson, 'England and the Continent iv: bodies and minds', *TRHS* 15 (2005), 1–27.

¹⁰⁶ *Vita Remigii*, pp. 315–16, also in *HRE*, bk 1, ch. 17, p. 95. *DLothI* no. 132; the land (Awans) was given to Prüm. Cf. *DLothI*, no. 137 (855).

¹⁰⁷ *AB*, s. a. 864.

¹⁰⁸ Christian 'of Stavelot', *Expositio super librum generationis*, ed. R. Huygens, *CCCM*, vol. ccxxiv (Turnout, 2008), pp. 407–8. On the iconography of Carolingian coins, see I. Garipzanov, *The symbolic language of authority in the Carolingian world (c. 751–877)* (Leiden, 2008), pp. 208–16, with references to older approaches.

¹⁰⁹ J. Lusse, 'La présence royale en Champagne au Haut Moyen Âge', in G. Clause, S. Guilbert and M. Vaisse, eds., *La Champagne et ses administrations à travers le temps* (Paris, 1990), pp. 69–92, provides a good survey of palaces and royal centres for Champagne, supplemented by J. Barbier, 'Rois et moines en Perthois pendant le haut Moyen Âge. A propos des origines et du temporel de Montiérender', in P. Corbet, J. Lusse and G. Viard, eds., *Les moines du Der (673–1790)* (Langres, 2000), pp. 45–81, who suggests that the land was inheritance from the Romans. For the Ardennes, see H. Müller-Kehlen, *Die Ardennen im Frühmittelalter. Untersuchungen zum Königsgut in einem karolingischen Kernland* (Göttingen, 1973) and for the Saarland, see H-W. Hermann, ed., *Geschichtliche Landeskunde des Saarlandes vom Faustkeil zum Förderturm* (Saarbrücken, 1960). W. Metz, *Das karolingische Reichsgut: eine verfassungs- und verwaltungsgeschichtliche Untersuchung* (Berlin, 1960) analyses a few fiscal centres from the region, too: Barisis, Awans (referred to as fiscal in *DLP* no. 545) and Ponthion, at pp. 111–13.

documents preserved by monasteries and above all capitularies, contribute too.¹¹⁰ For example, it is from a capitulary that we learn King Charles the Bald excluded his son Louis from the fiscal resources around Laon and the Ardennes, as well as from the palaces of Quierzy, Servais, Samoussey, Attigny, Ver and others, all in this region.¹¹¹ It is at first puzzling that none of the lands mentioned in the dower charter of Queen Theutberga, King Lothar II's ill-fated wife, was in Lotharingia proper, but this may point to the area's importance for the king and a consequential reluctance to alienate its assets, not to its lack of resources.¹¹² When all the evidence is taken together, there remains no room for doubt that kings could call upon enormous landed resources from this area. No wonder Smaragdus, abbot of St-Mihiel, congratulated the Frankish kings on their landed wealth.¹¹³

Most of the attention devoted to Carolingian royal lands has been framed, tacitly or otherwise, by the question of how and when these royal resources were dissipated, as fisc became benefice, and benefice *allod*. Quantifying this dissipation is a difficult business, since the distinction between restitutions and donations was much finer than it may seem from a superficial reading of the charter evidence. After all, St-Denis received two charters for the same piece of land in 766, one phrased as a restitution, the other as a donation.¹¹⁴ Still, if we exclude those transactions explicitly described as restitutions or confirmations, or which deal with confiscated land, we are left with around a hundred transfers of royal land from 800 onwards in this area. Some were impressive in scale. The *villae* of Dodincourt, Fleury-la-Rivière and Villance, all objects of royal generosity, can be tracked in charters and polyptychs and shown to have been substantial.¹¹⁵ Charles the Bald made donations of fifty holdings (*mansi*) to a Count Odo at Nogent in the region of Omois and sixty-eight *mansi* in the Laonnois to St-Germain-des-Prés, while Louis the Stammerer gave away ninety *mansi* in the Laonnois in one grant.

¹¹⁰ Particularly informative charters include *DA*, no. 31, confirming a now-lost charter of Lothar II (*DLothII* no. 43), giving a proportion of the income of forty-three *villae*, and *DLP* no. 545, referring to Awans, Sinzig, Andernach, Thommen, Theux and Clotten, amongst others. Cf. *DLP* no. 995. For narrative reference, Regino, *Chronicon*, ed. F. Kurze, *MGH SRG L* (Hanover, 1890), s. a. 885 (p. 123).

¹¹¹ *MGH Capit.*, vol. II, no. 281, chs. 32–3. ¹¹² *DLothII*, no. 27.

¹¹³ Smaragdus, *Via Regia*, *PL*, vol. CII, col. 933–70, ch. 27, observing that God had given Emperor Louis 'regna, parentumque multiplicia divisit et praedia; fisorum plurima dedit vectigalia et multorum potentum honoravit munera unde regia fabricare possis palatia', so there was no need for palaces to be built from the 'tears of paupers'.

¹¹⁴ *DPippin*, nos. 22–3, pp. 30–2, for the *villa* of Essones.

¹¹⁵ Fleury was still in the hands of St-Maur in the early eleventh century: see J. P. Devroey, 'La "villa Floriacus" et la présence de l'abbaye des Fossés en Rémois durant le Haut Moyen Âge', *Revue belge de Philologie et d'histoire* 82 (2004), 809–38; *Vita Burchardi*, ed. C. Bourel de la Roncière, *Vie de Bouchard le Venerable* (Paris, 1892), ch. 8.

Yet these grants were exceptional. Only around twenty transactions seem to have been sizeable (larger than twenty *mansi*), of which only seven passed to laymen.¹¹⁶ The great majority were on a small scale, a few *mansi* in a couple of *villae*, an impression confirmed by narrative texts.¹¹⁷ It indeed seems to be the case that tenth-century kings had very little land, but this was not simply the result of a haemorrhaging of fiscal property in the ninth century due to royal profligacy. Admittedly, small grants might well have been cumulatively considerable, but then the movement of land was not only one-way. Confiscation was an eminently real possibility, as one count's family experienced in 874 when they were deprived of Neuilly-Saint-Front (Aisne), and as indeed attested in plenty of charters.¹¹⁸ Often the blow might be softened by handing over the confiscated property to a relative, but this still left kings with room for manoeuvre.¹¹⁹ Of course, confiscation might well be only the retrieval of royal property given out previously. Land was explicitly given on condition of loyalty in charters of Lothar I onwards, clearly implying the possibility of taking back what had been given.¹²⁰ But confiscation could also be rather more far-reaching. A few years before his death, Charles the Bald began a 'quo warranto' style procedure to reclaim land, a general enquiry demanding that aristocrats produce evidence for their claims to have acquired fiscal or church property. However unfeasible that may seem, demonstrably certain aristocrats really did lose land if they did not have a charter for it.¹²¹

This fiscal flexibility, the way in which the fisc was continually replenished by political means, reminds us that we should avoid becoming too fixated on formally identified royal properties. In fact, a great deal of royal influence rested on the control of non-fiscal royal resources. Church councils pleaded with the king to keep an eye on his fiscal resources, in

¹¹⁶ *DCB* nos. 69 (845) Hannape to Nithard (Prüm), 119 (849) Nogent to Odo (St-Martin), 412 (876) Villeperrot to Conrad (St-Colombe), 416 (c.876) Chaource to Robert (Montiéramey); *DLothI*, no. 66 (842) *mansi* in six *villae* to Alpcar (Prüm); *DLP* no. 995 (839) Villance to Richard (Prüm); *DLS* no. 28 (879) Roubais and Autrepes to Aleran (St-Denis), and, though rather far to the south, *DRod* no. 26 (935).

¹¹⁷ For example, *HRE*, bk III, ch. 10, p. 209, lists the donations made by Charles the Bald to Hincmar's Rheims: half a dozen *mansi*.

¹¹⁸ For a narrative account, see Hincmar of Rheims, *De Noviliaco*, ed. H. Mordek, 'Ein exemplarischer Rechtsstreit: Hinkmar von Reims und das Landgut Neuilly-Saint-Front', *Zeitschrift der Savigny-Stiftung für Rechtsgeschichte. Kanonistische Abteilung* 83 (1997), pp. 86–112, ch. 4. Documentary evidence of confiscation: *DCB* nos. 196 (Corbie), 242, 323 (Everard), 347, 427 (around St-Germain) and 439; *DCM* no. 165, including fine paid by Alpad; *DLP* no. 995; *DLothI* no. 68 (Richard); *DLY* n. 17 (for Fulda, but concerning land in the Moselgau).

¹¹⁹ E.g., *DLothII*, no. 32. ¹²⁰ *DLothI*, no. 66.

¹²¹ Council of Quierzy 873, ch. 8 (*MGH Concilia*, vol. IV, p. 345). Those who held church or royal land were to prove their rights or lose it. Cf. *DCB*, no. 347.

fear that he would otherwise just take ecclesiastical lands.¹²² Pre-eminent amongst this potential fisc, so to speak, were monastic lands. Already by the ninth century, there was a dense network of monasteries that continued to be thickened out by foundations, including, in the ninth century, Charles the Bald's establishment of St-Urbain and Compiègne.¹²³ Centres of literate practice though they were, we nevertheless have only a patchy view of this network overall, but as a rough estimate, we might suppose there were around fifty or so significant monasteries and convents in the lands between Marne and Moselle.¹²⁴

The extent of monastic landholdings can only be known approximately, especially given that many donations may originally have been accompanied by now lost temporary restoration of the land for the donor's lifetime, while not all donations were necessarily recorded in writing.¹²⁵ Nevertheless, synodal decrees give a sense of the possible wealth of these institutions, and the figures are remarkable.¹²⁶ Small institutions were classed as those with a few hundred *mansi*, that is to say land nominally farmed by a few hundred households, whereas those with one or one-and-a-half thousand such farms were considered medium. Large were those institutions with three, four or even eight or more thousand *mansi*. Astonishing though it is, this sense of scale is supported in the documentary sources from this area. For example, the rich convent of Avenay, home to royal widows, certifiably controlled the lands on which perhaps a good seven thousand people lived, to support its twenty clerics and forty nuns; and the monastery of Prüm, certainly in the top rank but perhaps not the very wealthiest in the area, the lands of over eight thousand, if we conservatively assume an average household size of five people.¹²⁷

In this area, as elsewhere, small monasteries were used by kings as profitable benefices. The disreputable Bishop of Soissons, Rothad, was offered on his deposition 'a really decent monastery . . . so that he who had always led a life full of delicacies might not be broken'.¹²⁸ Similarly, Montfaucon was given to Verdun, and St-Germer de Fly to none other

¹²² Council of Meaux-Paris 845–6, ch. 20 (*MGH Concilia*, vol. III, pp. 94–5).

¹²³ On St-Urbain, see P. Gautier, 'Note sur des diplômes carolingiens des archives de la Haute-Marne', *Le Moyen Age* 16 (1912), 77–89.

¹²⁴ The will of Erkanfrida, c.853, lists twenty-five institutions as beneficiaries, of which fifteen were in the dioceses of Trier and Metz; just one, St-Eventius, cannot now be identified, though several are quite obscure. See J. Nelson, 'The wary widow', in Davies and Fouracre, eds., *Property and power*, pp. 54–82.

¹²⁵ Cf. *Traditiones*, ed. Glöckner and Doll, no. 271.

¹²⁶ Notably the Council of Aachen 816, ch. 122 (*MGH Concilia*, vol. II, p. 401).

¹²⁷ For Avenay's 1550 *mansi*, see *HRE*, bk III, ch. 27, p. 350. L. Kuchenbuch, *Bäuerliche Gesellschaft und Klosterherrschaft im 9. Jahrhundert. Studien zur Sozialstruktur der Familia der Abtei Prüm* (Wiesbaden, 1978) estimates that Prüm had at least 1,700 *mansi*, p. 49.

¹²⁸ Hincmar of Rheims, *Epistolae*, PL, vol. CXXVI, col. 30.

than a young Hincmar of Rheims. But the real prizes were the large monasteries. Many had at some point in the ninth century a lay, irregular, or titular abbot through the king's gift: Maingaud of St-Maximin (Trier) and Reginar 'Long-neck' of Echternach in the late ninth century are particularly well known, and there is good evidence to suggest that Count Adalelm of Troyes was a lay abbot of St-Lupus (Troyes) around the same time; and the practice can already be found earlier in the ninth century, too.¹²⁹ Sometimes it was the king himself who took the abbacy.¹³⁰ The titular abbot might impose a division of the monastery's assets into two parts, one reserved for the use of the monks, the second reserved for political engagement.¹³¹ The appointment of titular abbots, men like Einhard, can be seen as an aspect of church reform, not decadence, indicating that it was no longer felt appropriate for professed monks to carry out the tasks required, and making it easier for the monks to concentrate on what they were supposed to be doing. Perhaps this is why the division of monastic assets into two parts was sometimes welcomed by monks.¹³²

In any case, all monasteries, with or without a titular abbot, made important contributions to royal requirements. Prüm never had a titular abbot, and indeed acquired an impressive collection of immunities, but still kept back designated servants (*scararii*) for the service of the king in a transaction of 880, while its dependent cell of St-Goar seems to have functioned primarily to provision the king when in the Rhineland.¹³³ Kings did not, after all, have to take over a monastery, or keep a bishopric vacant, to exploit church resources. As already mentioned, both monasteries and bishoprics were billeted with royal vassals, who were obliged to pay nones and tithes as recognition of the church's rights, but beyond that had complete control of the property.¹³⁴

¹²⁹ *Cartulaire de l'abbaye de St-Loup de Troyes*, ed. C. Lalore, Collection des principaux Cartulaires du Diocèse de Troyes, vol. 1 (Paris, 1878), no. 1.

¹³⁰ *DLothI* no. 67 (regarding Mettlach). *DCB* no. 174.

¹³¹ E.g. *DA* no. 12 (St-Maximin); *DCB* nos. 70 and 191 for Montier-en-Der, 326 for St-Bénigne, 431 for St-Mihiel, 304 for St-Vaast, 338 for St-Medard, and 433 for Nivelles. Often reconfigured, as at St-Amand (*DCB* no. 303) and St-Riquier (*DCB* no. 306); *DLothII* no. 17 for Stavelot (leaving them with just 245 *mansil*); *DZ* no. 5 for Echternach; *Regesta Imperii. Die Regesten des Kaiserreichs unter den Karolingern, 751–918*, ed. J. F. Böhmer, revised by E. Mühlbacher with J. Lechner, 2nd edn (Innsbruck, 1908), no. 857 for St-Germain; nos. 757 for St-Amand, 874 for St-Riquier and 906 for St-Denis, *inter alia*.

¹³² Frothar, *Epistolae* no. 3, pp. 94–6.

¹³³ *UBMR*, vol. 1, no. 118; Wandalbert, *Miracula Goaris*, ed. O. Holder-Egger, *MGH SS*, vol. XV:i, pp. 361–73, at p. 372 (and compare the entire *Vita Goaris*, ed. B. Krusch, *MGH SRM*, vol. IV (Hanover, 1902), pp. 402–23).

¹³⁴ *Regesta Imperii*, ed. J. F. Böhmer, no. 800; cf. nos. 615 for St-Mihiel (writ) and 801 for Rheims, echoed in *DCB* no. 99.

Royal power was not exercised only in terms of property, and the king, whose majesty demanded the royal 'we', was no mere landlord.¹³⁵ In large part, the king's power was demonstrated by the movement of the area's leaders to the royal court, where they offered gifts of both symbolic and practical significance.¹³⁶ One charter redacted in 820 at the palace of Quierzy, west of Laon, included a list of witnesses, which, though it did not necessarily reflect the composition of the assembly as a whole, is nevertheless tangible evidence for the potential composition of these royal meetings: of its thirty witnesses, eleven were counts, men who had come to Quierzy from areas across the Frankish kingdom, including Burgundy, Maine, the Rhineland, Bavaria, the Breton march and Alemannia.¹³⁷ General meetings like this structured the lives of important figures in the provinces. Bishops and abbots from this area anticipated seeing each other at general assemblies, spent much time travelling to and from these meetings and worried about how to present themselves properly when they arrived.¹³⁸ Hincmar of Rheims commented that he was rarely to be found at Rheims on feast days because of his association with the court, while Hincmar of Laon's route to and from court was traversed frequently enough to be well known by others.¹³⁹

Conversely, the king and the royal court were often to be found at Rheims or in its environs.¹⁴⁰ In 869, Archbishop Hincmar dismissed the Pope's suggestion that he should avoid Charles the Bald following his unwelcome invasion of Lotharingia:

I don't know how I could avoid the presence, communion and company of this king . . . since the king and my neighbours often meet not just in my diocese, but in my city, and they stay there as long as the king wants to, with a great multitude from the kingdom which he used to have as well as the kingdom which Lothar had, indeed of people flocking together from other kingdoms, whom I look after in my city¹⁴¹

Kings often visited the areas around the Moselle and the Meuse too, as implied by dues mentioned in the Prüm polyptych, owed 'on the king's arrival'.¹⁴² In

¹³⁵ Royal plural: Christian 'of Stavelot', *Expositio*, p. 301, 'in communi nostra lingua usus sit'.

¹³⁶ Ermold, *Carmen in Honorem Ludovici*, ed. and tr. E. Faral, *Ermold le Noir* (Paris, 1964), p. 16; Frothar, *Epistolae*, no. 22, pp. 130–2 (in this case horses).

¹³⁷ *Traditiones*, ed. Glöckner and Doll, no. 69, pp. 268–72.

¹³⁸ Frothar, *Epistolae* no. 8, pp. 102–4, and no. 24, p. 134. Lupus of Ferrières was cured on route to an assembly at Frankfurt, *Vita Faronis*, ed. B. Krusch, *MGH SRM* vol. v, pp. 171–203, at p. 198.

¹³⁹ Hincmar of Rheims, *Epistolae*, *PL*, vol. cxxvi col. 556.

¹⁴⁰ Hincmar of Rheims, *Epistolae*, *PL*, vol. cxxvi, col. 183.

¹⁴¹ Hincmar of Rheims, *Epistolae*, *PL*, vol. cxxvi, col. 183.

¹⁴² 'In adventu regis', a phrase first mentioned in ch. 6 of the Prüm polyptych (*Das Prümer Urbar*, ed. Schwab, p. 171).

view of all this movement, it is perhaps not surprising that for one ninth-century Lotharingian writer, music was no longer primarily associated with funerals, but with the processions of princes.¹⁴³

Royal power was also mediated indirectly, again, in a variety of ways. The written word played a crucial role. Capitularies, for example, consensus documents produced in consultation with the king, represented efforts to control and constrain the king's agents. For example, the capitularies issued at Soissons in 853 directed *missi* to be sent to check on the localities, in terms of comital activity, monastic morality, benefice-holding and the like. Capitularies were probably read out in local meetings, and demonstrably impinged on real events in concrete ways.¹⁴⁴ But we should also consider the evidence for informal royal 'writs': terse documents of command, issued by the king without the formal characteristics of a diploma.¹⁴⁵ Though the likelihood of survival for these documents must have been low, monastic archives from this area have preserved ones issued by Louis the Pious, (probably) Charles the Bald and Lothar I. Others which do not now survive are mentioned in other sources.¹⁴⁶ Even the imposing, heavily formalised royal diplomata can be shown to have been genuinely valued in this area, particularly in cases of dispute, though in other contexts too, as mentioned above in the case of immunities.¹⁴⁷ Their precise wording could be crucially important.¹⁴⁸ Little wonder that secular recipients of royal favours hung

¹⁴³ Christian, *Expositio*, p. 206.

¹⁴⁴ See Benedict Levita, *Capitularia*, whose preface describes *capitula* as 'in diversis sinodis et placitis generalibus edita'; Benedict considered his purpose, in part, as one of *recordatio*. For local meetings, Council of Quierzy 857 (*MGH Concilia*, vol. IV, p. 397). For a specific case in which the capitularies were cited (about the murderer Luido), see Hincmar, *Epistolae*, PL, CXXVI, col. 97. Cf. Frothar, *Epistolae* no. 18, p. 126, and no. 29, pp. 142–4.

¹⁴⁵ M. Mersiowsky, 'Regierungspraxis und Schriftlichkeit im Karolingerreich: Das Fallbeispiel der Mandate und Briefe', in R. Schieffer, ed., *Schriftkultur und Reichsverwaltung unter den Karolingern. Referate des Kolloquiums der Nordrhein-Westfälischen Akademie der Wissenschaften am 17./18. Februar 1994 in Bonn* (Opladen, 1996), pp. 109–66, is an excellent introduction.

¹⁴⁶ *DLothI* no. 57 (Prüm); *The cartulary of Montier-en-Der, 666–1129*, ed. C. Bouchard (Toronto, 2005), nos. 18 and 19; *DLP* no. 800 (St-Bénigne). Lost but attested: the *regis indiculum* presented to Hincmar of Laon, mentioned in Hincmar of Rheims, *Epistolae*, PL, vol. CXXVI, col. 495.

¹⁴⁷ *Cartulaire de l'abbaye de Gorze, Ms. 826 de la bibliothèque de Metz*, ed. A. d'Herbomez, Mettensia II (Paris, 1898), no. 60; *Cartulary*, ed. Bouchard, no. 18, where they were used to secure a writ; Frothar, *Epistolae*, no. 12, p. 114; Hincmar of Laon, *Rotula Prolixa*, ed. R. Schieffer, *Die Streitschriften Hinkmars von Reims und Hinkmars von Laon 869–871*, *MGH Concilia* (Hanover, 2003) pp. 367–8; *Vita Theodoric altera* (BHL 8060), ed. J. Sollerius, *AASS Jul.*, vol. I, cols. 64–70, at col. 68. The polyptych of St-Rémi refers to the *preceptum regis*, relating to dependants of a certain Sigibert de Trepallo (*Le Polyptyque*, ed. Devroey, pp. 66, 69); cf. Hincmar's *De Noviliaco*, showing the use of *praecepta* on various occasions. Cf. Vandières and Douzy (*HRE*, bk I, ch. 24, p. 125; bk III, ch. 20, p. 267); and *DCB* no. 236 where charters are called upon to be inspected. Papal charters, too, were used 'in practice': e.g. *MGH Epp.*, vol. VIII, p. 215 (recited) and p. 216 (intended to terrify).

¹⁴⁸ For instance, *MGH Formulae*, p. 324, where a woman was enslaved because her *parentela* was not mentioned explicitly in the royal charter.

onto their charters, that ninth-century monasteries like Stavelot and St-Denis made up for a lack of material through forgery, and that diplomata might sometimes be the objects of targeted theft.¹⁴⁹ Little wonder, too, that much effort went into trying to get the right charter through lobbying at the royal court, reinforcing its centrality.¹⁵⁰

Yet kings were not constrained by the written word, for oral commands could be just as effective. For example, Bishop Rothad of Soissons recalled how in 862 Charles the Bald had prevented him leaving to take a complaint to Rome. On hearing of his imminent departure, the king had sent an abbot post-haste, who arrived just as the bishop was leaving. Standing in the atrium of the church, the abbot publicly forbade the bishop to leave, by the king's command.¹⁵¹ There are other concrete instances like this, showing that *missi dominici* and other ad hoc royal agents were prominent not just in the reign of Louis the Pious, but right through the period: altering the distribution of ecclesiastical land in Toul, protecting royal fiscal interests elsewhere, and insisting on their hospitality rights.¹⁵² These *missi*, given letters of hospitality (*tractoria*) to ease their journey, were still prominent and active in the area into the 870s.¹⁵³

CONCLUSION: STRUCTURES OF AUTHORITY

This chapter has brought together the secular and ecclesiastical material in order to assess the weight of evidence for the relevance of formal structures of Carolingian co-ordination in this area. This evidence requires subtle treatment and is sometimes indirect, but nevertheless is cumulatively impressive. It is apparent that the count, the bishop and the king, and their various agents, were real and influential presences between Marne and Moselle in the ninth century, representing an effective institutionalised authority.

The traditional interpretation built on this kind of evidence, that the Carolingians created a state, is still robustly maintained by many historians.¹⁵⁴

¹⁴⁹ *DLP* no. 995 was passed over to Prüm three-and-a-half years later, and *DDLthI* no. 128 for well over a decade; while *DDLthI* nos. 69, 96, 138, and *DCB* nos. 10 and 119 were kept for longer still, beyond a generation, before passing into monastic archives. Theft: *HRE* bk iii ch. 27 p. 351, for a charter stolen from Origny.

¹⁵⁰ *MGH Epp.*, vol. vi, p. 22

¹⁵¹ Rothard, *Libellus proclamationis*, Council of Rome 864 (*MGH Concilia*, vol. iv, at pp. 183–4).

¹⁵² Toul: Frothar, *Epistolae* no. 7, p. 102. Cf. *MGH Formulae*, pp. 293, 321 with *MGH Capit.*, vol. 1, 151, p. 308. Protecting fiscal interests: *DCM* nos. 203 (Prüm); *DLP* nos. 638 (Prüm) and 699 (Hornbach). Cf. *DCB* no. 347, though, for an area a little to the south; and *DZ* no. 17.

¹⁵³ *MGH Epp.*, vol. vi, p. 63, using *tractoria*; cf. Council of Douzy 874, *MGH Concilia*, vol. iv, pp. 587–95, about an unnamed monastery.

¹⁵⁴ For instance, G. Althoff, *Die Ottonen: Königsherrschaft ohne Staat* (Stuttgart, 2000), p. 231. See the essays in W. Pohl and V. Wieser, eds., *Der frühmittelalterliche Staat – Europäische Perspektiven* (Vienna, 2010).

The parameters of Carolingian society

As we shall see in the next chapter, however, others have instead stressed the informal networks which underpinned or perhaps undermined these formal institutions, in order to criticise conventional models of the Feudal Revolution. Their critiques need to be taken seriously, and networks of kinship, landholding and patronage are the topic of the next chapter. However, as will be discussed again in Chapter 3, no matter how justified any critiques of an interpretative position may be, they must be considered incomplete unless they can make better sense of the evidence on which that position was founded.